

STATE OF NEW YORK

4642--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 4, 2025

Introduced by M. of A. KELLES, SIMON, K. BROWN, JACOBSON, STECK, SEAWRIGHT, SIMONE, ROSENTHAL, STERN, DURSO, NOVAKHOV, RAGA, RAJKUMAR, KIM, BARRETT, ANDERSON, GLICK, LUNSFORD, SHIMSKY, BICHOTTE HERMELYN, DINOWITZ, SANTABARBARA, TAYLOR, CLARK, PAULIN, SHRESTHA, LAVINE, R. CARROLL, FORREST, SLATER, CUNNINGHAM, SAYEGH, OTIS, DE LOS SANTOS, WOERNER, REYES, WEPRIN, BRAUNSTEIN, CONRAD, GONZALEZ-ROJAS, HUNTER, CRUZ, ZINERMAN, BENEDETTO, JACKSON, RIVERA, TAPIA, STIRPE, DILAN, PHEFFER AMATO, FALL, EACHUS, RAMOS, BENDETT, ALVAREZ -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to requiring certain state owned and operated parking facilities to install charging stations for electric vehicles

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The executive law is amended by adding a new section 201-b
2 to read as follows:

3 § 201-b. Electric vehicle charging stations. 1. Definitions. For the
4 purposes of this section:

5 a. "parking facility" shall mean a parking garage, parking structure,
6 or open parking lot that is paved and striped to designate individual
7 parking spaces for vehicles.

8 b. "electric vehicle ready infrastructure" shall have the same meaning
9 as in subparagraph (i) of paragraph (a) of subdivision nine of section
10 11-104 of the energy law.

11 c. "electric vehicle charging station" shall have the same meaning as
12 in subparagraph (ii) of paragraph (a) of subdivision nine of section
13 11-104 of the energy law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 d. "power-based allocation method" shall mean a compliance approach
2 that allows electric vehicle charging infrastructure requirements to be
3 met based on the total kilowatt power capacity available for charging
4 electric vehicles, without mandating a specific number or type of charg-
5 ing stations.

6 2. Any parking facility owned and operated by the state of New York,
7 that offers fifty or more parking spaces for the purposes of public use,
8 state employee use and pay-per-usage, is hereby required to install a
9 minimum quantity of electric vehicle charging stations based on a
10 percentage of the total number of parking spaces offered by such facili-
11 ty or computed using the power-based allocation method, as set forth in
12 rules and regulations promulgated by the office of general services.

13 3. a. No later than one year from the effective date of this section,
14 the office of general services shall promulgate rules and regulations to
15 ensure that any new parking facilities owned and operated by the state
16 of New York with fifty parking spaces or more shall have electric vehi-
17 cle ready infrastructure and electric vehicle charging stations in
18 accordance with subdivision two of this section;

19 b. Such rules and regulations shall:

20 (i) establish guidelines for calculating aggregate power capacity for
21 electric vehicle charging stations in parking facilities;

22 (ii) set standards ensuring equitable access to charging options for
23 various types of electric vehicles;

24 (iii) assure flexibility to select appropriate charging types based on
25 power levels; and

26 (iv) assure compliance with all applicable safety and accessibility
27 requirements.

28 c. Such rules and regulations shall not apply to:

29 (i) any repairs, alterations, or additions to a parking facility when
30 such repairs, alterations, or additions are being made to less than
31 fifty percent of such parking facility; or

32 (ii) a change of occupancy or use of parking facilities.

33 d. Such rules and regulations shall not apply to parking facilities
34 existing prior to the adoption of such rules and regulations pursuant to
35 this section.

36 4. The office of general services shall be responsible for the instal-
37 lation of any electric vehicle supply equipment and charging stations.

38 5. The office of general services may be responsible for the mainte-
39 nance, general upkeep and repair of any electric vehicle supply equip-
40 ment and charging stations. If the office of general services is unable
41 to complete such maintenance or repairs, the office may contract with a
42 licensed electrician or similar repair service to complete the necessary
43 work on said equipment.

44 § 2. This act shall take effect immediately.